

FORMAL ADA CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

Henderson Street / East Second Street — Non-Compliant Curb Ramp Following City Reconstruction (2023)

Submitted to:	Michael Shermis, ADA Coordinator / Human Rights Commission Director
City:	City of Bloomington, Indiana
Date:	April 7, 2026
Re:	ADA Non-Compliance — Curb Ramp, Northwest Corner of S. Henderson Street and East Second Street: Persistent Gravel Accumulation Rendering Ramp Impassable After City Reconstruction Under the Henderson Greenway Project (Completed July 12, 2023)

1. Introduction and Overview

This document constitutes a formal civil rights grievance filed pursuant to Title II of the Americans with Disabilities Act of 1990 (42 U.S.C. § 12131 et seq.). The complaint concerns the curb ramp at the northwest corner of S. Henderson Street and East Second Street in Bloomington, Indiana.

The facts are straightforward. The City of Bloomington replaced this ramp as part of the Henderson (2nd to Smith) Neighborhood Greenway Connection project, completed July 12, 2023. Under 28 C.F.R. § 35.151, when a public entity alters a pedestrian facility, the altered elements must comply with applicable accessibility standards to the maximum extent feasible. Since reconstruction, the ramp has persistently filled with gravel, rendering its surface neither firm, stable, nor slip-resistant. The ramp does not meet the accessibility standards that attached when the City chose to rebuild it.

The violation is documented across six dates spanning July 2023 through March 2026. The complainant's photograph from July 3, 2023 — nine days before the project's stated completion date — shows gravel already accumulating in the ramp bowl with what appears to be a construction barrel still on site (Fig. 1, below). The ramp has not been corrected in nearly three years.



Fig. 1: Complainant's photograph, July 3, 2023 — nine days before project completion date of July 12, 2023. Gravel accumulating in the reconstructed ramp bowl; what appears to be a construction barrel visible at right.

The program accessibility obligation of 28 C.F.R. § 35.150 provides an independent basis: the City must operate its pedestrian program so that it is accessible to persons with disabilities when viewed in its entirety. The maintenance obligation of 28 C.F.R. § 35.133 independently requires the City to keep accessible features in operable working condition. The City adopted the Public Rights-of-Way Accessibility Guidelines (PROWAG) by Resolution 2011-99 in 2011, establishing the technical standards it committed to apply to pedestrian facilities. All three bases apply here; the alterations standard is the most direct.

2. Applicable Regulatory Framework

2.1 Alterations Standard — Primary Basis (28 C.F.R. § 35.151)

Under 28 C.F.R. § 35.151(b), when a public entity alters an existing facility, the altered portion shall comply with applicable accessibility requirements to the maximum extent feasible. The City replaced the ramp and curb at the northwest corner of S. Henderson Street and East Second Street as part of a capital project. That replacement is an alteration. The reconstructed ramp does not comply with applicable surface requirements.

The 2010 ADA Standards for Accessible Design, which DOJ's Title II regulations adopt as the applicable technical standard, require curb ramps (§ 406) to comply with general ground-surface requirements (§ 302), which mandate that walking surfaces be stable,

firm, and slip resistant. The City additionally adopted PROWAG by Resolution 2011-99 in September 2011, committing to its technical standards for pedestrian facilities in the public right-of-way. PROWAG R302.7 likewise requires pedestrian access route surfaces to be firm, stable, and slip-resistant — a requirement that predates the 2023 PROWAG Final Rule and was in force throughout the period covered by this complaint. A ramp bowl that fills with loose gravel satisfies none of these requirements.

The alterations standard permits departure from full compliance only where compliance is not feasible. While Indiana DOT's Field Inspection and Engineering (GIFE) Section 22 applies directly to state-funded transportation projects rather than to municipal work of this kind, its guidance on ADA compliance principles is instructive: INDOT, applying the federal "technical infeasibility" framework, requires any such determination to be made in writing, by appropriate engineering authority, before construction begins. INDOT further states that "'Doing the best you can' is not sufficient for ADA compliance." No technical infeasibility determination for the Henderson ramp has been disclosed. The City undertook a full ramp replacement as a planned capital project; the obligation to deliver an accessible surface attached at that moment.

2.2 Program Accessibility — Independent Basis (28 C.F.R. § 35.150)

Under 28 C.F.R. § 35.150(a), a public entity shall operate each service, program, or activity so that the service, program, or activity, when viewed in its entirety, is readily accessible to and usable by individuals with disabilities. This obligation does not require every individual facility to be independently accessible, but it does require that the City's pedestrian network, considered as a program, not exclude persons with disabilities. A persistent, multi-year inaccessibility at a reconstructed ramp — at an intersection the City chose to improve as part of a capital project — is relevant to that assessment, particularly where, as documented in Section 3.3, the alternative pedestrian route on the east side of S. Henderson Street presents its own accessibility concerns.

2.3 Maintenance of Accessible Features (28 C.F.R. § 35.133)

Under 28 C.F.R. § 35.133, a public entity shall maintain in operable working condition those features of facilities and equipment that are required to be accessible. The regulation recognizes that isolated or temporary interruptions due to maintenance or repair may be unavoidable. That exception has no application here: the photographs in Appendix A document the same gravel accumulation condition across six separate observations over a period of nearly three years, spanning multiple seasons and weather conditions. This is not a temporary interruption; it is an unaddressed structural condition.

2.4 Applicable Technical Standards

2010 ADA Standards for Accessible Design, §§ 302 and 406 (Floor or Ground Surfaces; Curb Ramps): Curb ramps (§ 406) are required to comply with the ground-surface provisions of § 302, which require walking surfaces to be stable, firm, and slip resistant.

PROWAG R302.7 (Surfaces, City adoption 2011): Surfaces of pedestrian access routes shall be firm, stable, and slip resistant.

PROWAG R204.2 (Pedestrian Access Routes, City adoption 2011): A pedestrian access route shall be provided within sidewalks and other pedestrian circulation paths in the public right-of-way.

3. Description of the Barrier and Documented Conditions

3.1 The Henderson Greenway Reconstruction

The City of Bloomington's Henderson (2nd to Smith) Neighborhood Greenway Connection project was completed July 12, 2023. The project constructed a multi-use path on the west side of S. Henderson Street and repaved the street. The project plans identify the scope of work at the northwest corner of S. Henderson Street and East Second Street as: "REPLACE RAMP AND CURB AT EXISTING GRADES." This is a full reconstruction of the ramp and curb, constituting an alteration under 28 C.F.R. § 35.151. Figures A-1 through A-5 in Appendix A document the ramp at this location across multiple dates prior to the Greenway reconstruction. Figure A-6 documents the newly reconstructed ramp in Google Street View imagery captured near the project completion date.

3.2 Gravel Accumulation Predating Project Completion

The complainant's photograph from July 3, 2023 (Fig. 1; Fig. A-7 in Appendix A) was taken nine days before the project completion date of July 12, 2023, with what appears to be a construction barrel still present at the site. Gravel was already accumulating in the ramp bowl. The ramp did not comply with applicable surface accessibility requirements at any documented point following its reconstruction — including before the project was formally closed out.

3.3 Persistent Non-Compliance: July 2023 Through March 2026

The complainant's photographs from four subsequent dates confirm that the gravel accumulation has continued without permanent correction. See Figures A-8 through A-11 in Appendix A. The following table summarizes the documented record:

Figure	Date	Observation
A-6	July 2023	Reconstructed ramp near project completion. Gravel visible in ramp bowl (Google Street View).
A-7 / Fig. 1	July 3, 2023	Nine days before project completion. Gravel accumulating; what appears to be a construction barrel on site.

A-8	October 20, 2023	Three months post-completion. Gravel fills ramp bowl.
A-9	June 3, 2024	Eleven months post-completion. Condition unchanged.
A-10	May 31, 2025	Nearly two years post-completion. Gravel accumulation persists.
A-11	March 27, 2026	Nearly three years post-completion. Condition materially unchanged from 2023.

3.4 The East-Side Sidewalk Is Not an Accessible Alternative

The Henderson Greenway project built a new multi-use path on the west side of S. Henderson Street. The east side of S. Henderson Street has an existing sidewalk. The City may point to this east-side sidewalk as an alternative pedestrian route available to wheelchair users at the northwest corner ramp.

That sidewalk was not improved as part of the Henderson Greenway project, which repaved the street and built the west-side path but left the east-side sidewalk in its existing condition. As documented in Fig. 2 below, the east-side sidewalk presents cracked pavement, gravel intrusion at a driveway crossing, and deteriorated surface conditions. The complainant does not assert in this complaint that the east-side sidewalk independently violates applicable accessibility standards; that question is outside the scope of this grievance. The complainant does observe that a sidewalk exhibiting these conditions — unimproved while the rest of the corridor was under active capital reconstruction — does not constitute an equivalent accessible alternative to a reconstructed, PROWAG-standard curb ramp.



Fig. 2: East side of S. Henderson St., looking north toward E. Second St. Cracked pavement, gravel intrusion at a driveway crossing, and deteriorated surface conditions are visible. This sidewalk was not corrected by the Henderson Greenway project.

4. Regulatory Violations

The conditions described in Section 3 constitute violations of the following:

Regulation	Violation
28 C.F.R. § 35.151	Failure to construct an altered facility in compliance with applicable accessibility standards. The ramp was rebuilt under a capital project and is not accessible: it fills persistently with gravel, rendering the surface impassable.
28 C.F.R. § 35.150(a)	Failure to operate the City's pedestrian program so that it is, when viewed in its entirety, readily accessible to and usable by individuals with disabilities.
28 C.F.R. § 35.133	Failure to maintain an accessible feature in operable working condition. The gravel accumulation has not been corrected across a documented period of nearly three years.
ADA Standards §§ 302 and 406 (2010 ADA Standards for Accessible Design)	Ground surfaces of curb ramps must be stable, firm, and slip resistant (§ 302, applied to curb ramps through § 406). The reconstructed ramp does not satisfy this requirement.
PROWAG R302.7 (City adoption, Res. 2011-99)	Surfaces of pedestrian access routes shall be firm, stable, and slip resistant. Cited as technical standard under the City's own adopted guidelines.

5. The City's Anticipated Defenses and Why They Fail

5.1 "This Is a Maintenance Issue, Not an Alteration Defect"

The photographic record forecloses this characterization. The complainant's photograph from July 3, 2023 — nine days before the project's own completion date — documents gravel accumulating in the ramp bowl with what appears to be a construction barrel still on site. The ramp did not comply with applicable surface requirements at any documented point following reconstruction, including before the project was closed out. Whether the accumulation is treated as a design defect, a construction defect, or a failure to maintain completed work, the legal result is the same: the City is obligated to provide an accessible surface, and it has not done so.

The § 35.133 maintenance obligation applies in any event. Even accepting the most favorable characterization of this as a maintenance matter, 28 C.F.R. § 35.133 requires

the City to maintain accessible features in operable working condition. Six documented observations across nearly three years, spanning multiple seasons, establish that this condition is persistent and unaddressed — not a temporary interruption within the meaning of the regulation.

5.2 The Technical Infeasibility Exception Is Unavailable

Section 35.151 permits departure from full compliance in an alteration only where compliance is not feasible. Although Indiana DOT guidance (GIFE Section 22) applies directly to state-funded transportation projects rather than to municipal work of this kind, its guidance on ADA compliance principles is instructive: INDOT, applying the federal “technical infeasibility” framework, requires any such determination to be made in writing, prior to construction, by appropriate engineering authority. The City undertook a full ramp replacement as a planned capital project; no prior technical infeasibility determination has been disclosed. That defense is not available retroactively after a non-compliant facility has been delivered.

5.3 "The City Will Address This Through Normal Maintenance Processes"

The complainant has reported numerous accessibility concerns through the City's informal channels and has not found that process to produce durable corrections. A civil rights complaint requires a civil rights response: a written reply that identifies the specific corrective action, timeline, and responsible party. The complainant asks that this grievance be treated accordingly. The specific requirements for an adequate response are set out in Section 6.

6. Remedies Requested

Tier 1

Remedy 1A — Correction with Specific Timeline

The City shall correct the gravel accumulation problem at the northwest corner curb ramp at S. Henderson Street and East Second Street such that the ramp surface complies with applicable accessibility standards, including the surface requirements of the 2010 ADA Standards and PROWAG R302.7. Correction shall address the underlying cause — whether drainage geometry, inadequate edge containment, or some other design or construction factor — and shall not consist solely of removing accumulated gravel on a one-time basis.

Within 60 days of receiving this complaint, the City shall provide:

- A specific construction start date and completion date;
- Identification of the contractor or City crew assigned to perform the work;
- A description of the physical modification that will prevent recurrence;
- A point of contact through whom the complainant can verify completion.

Remedy 1B — Written Acknowledgment

The City shall provide a written response to this complaint addressing the regulatory violations identified herein. If the City's position is that no violation has occurred, the City shall state its legal basis for that position in writing.

Remedy 1C — ADA Self-Evaluation and Transition Plan Records

The City shall produce any ADA self-evaluation, transition plan, or project file entry addressing the accessibility of pedestrian facilities at the S. Henderson Street and East Second Street intersection. If no such records address this location, the City shall acknowledge that in writing.

Tier 2 — Preferred Additional Remedy

The complainant observes that the Henderson Greenway project improved the west-side multi-use path and repaved the street while leaving the east-side sidewalk in its existing condition. The complainant requests that the City evaluate the accessibility of the east-side sidewalk of S. Henderson Street between East Second Street and East First Street as part of any corrective action plan for this corridor, and provide its assessment to the complainant. This is offered as a preferred additional remedy and does not condition the Tier 1 remedies.

7. Pattern of Non-Compliance and Systemic Concern

This complaint is one of a series of formal civil rights grievances being filed with this office regarding accessibility failures in the City's pedestrian network. Each complaint concerns a distinct location and set of facts. The pattern this complaint documents is specific: the City completed a capital project that included curb ramp reconstruction, and the reconstructed ramp has not functioned as an accessible facility from the date of completion through the date of this filing. The complainant reserves the right to supplement this complaint if the City's response to the remedies requested herein defers or reduces other planned accessibility improvements.

8. Notice of Intent to Escalate

Should the City fail to provide a substantive response within 60 days of receiving this complaint, or should the response not include the specific commitments identified in Section 6, the complainant reserves the right to submit this complaint and the City's response to the Indiana Civil Rights Commission and to the U.S. Department of Justice, Civil Rights Division, Disability Rights Section.

9. Supporting Documents and References

- Title II of the Americans with Disabilities Act, 42 U.S.C. § 12131 et seq.; implementing regulation 28 C.F.R. Part 35.

- 2010 ADA Standards for Accessible Design, U.S. Department of Justice (September 15, 2010), incorporating the 2004 ADA Accessibility Guidelines; Section 406 (Curb Ramps).
- U.S. Access Board, Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, effective October 7, 2023 (88 FR 53608). Cited as a technical reference under the City's own 2011 adoption.
- City of Bloomington, Board of Public Works, Resolution 2011-99, September 27, 2011 (City adoption of PROWAG as technical standard for pedestrian facilities).
- City of Bloomington, Henderson (2nd to Smith) Neighborhood Greenway Connection project, completed July 12, 2023. Project details and plans: <https://bloomington.in.gov/engineering/projects/henderson-hunter>. Project plans specifying "REPLACE RAMP AND CURB AT EXISTING GRADES" at the northwest corner of S. Henderson Street and East Second Street.
- Indiana Department of Transportation (INDOT), Field Inspection Engineering (GIFE), Section 22: ADA Compliance for Sidewalk, Curb Ramps, Blended Transitions, and Pedestrian Facilities, Rev. 09-01-24 (technical infeasibility determination requirements).
- U.S. Department of Justice, Title II Technical Assistance Manual (1993) and subsequent guidance on program accessibility and maintenance obligations under 28 C.F.R. §§ 35.150 and 35.133.
- Photographic evidence: Fig. 1 and Figures A-1 through A-12 as described in Appendix A. All photographs incorporated by reference.

Respectfully submitted,

[Name, address]

April 7, 2026

This complaint was prepared with the assistance of Claude, an AI assistant developed by Anthropic (claude.ai) and other AI assistants. All factual observations, photographic evidence, and legal conclusions reflect the complainant's own direct knowledge and are the complainant's responsibility.

APPENDIX A

Photographic Evidence — S. Henderson Street at E. Second Street

Figures A-1 through A-12 — Chronological Record, August 2007 through April 2026

Figures A-1 through A-5 document the ramp at this location prior to the July 2023 reconstruction. Figures A-6 through A-11 document the reconstructed ramp and the persistent gravel accumulation from the project completion date through March 2026. Figure A-7 corresponds to Fig. 1 in the body of this complaint. Figure A-12 documents the east-side sidewalk of S. Henderson Street, corresponding to Fig. 2 in the body of this complaint.

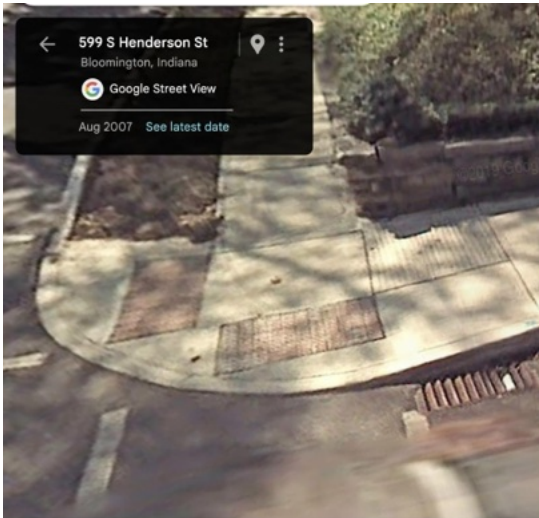


Fig. A-1 — Aug. 2007. Google Maps Street-level view, northwest corner of S. Henderson St. and E. Second St.

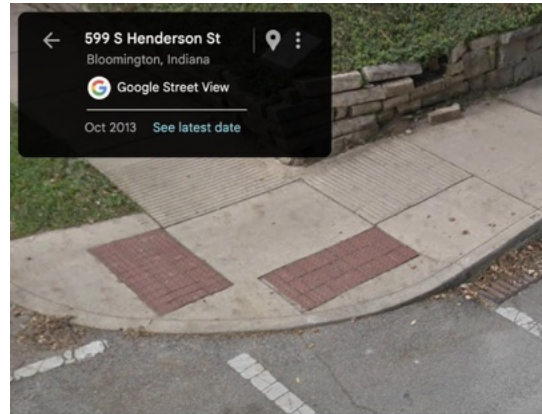


Fig. A-2 — Oct. 2013. Curb ramp, northwest corner, S. Henderson St. at E. Second St. (Google Street View).

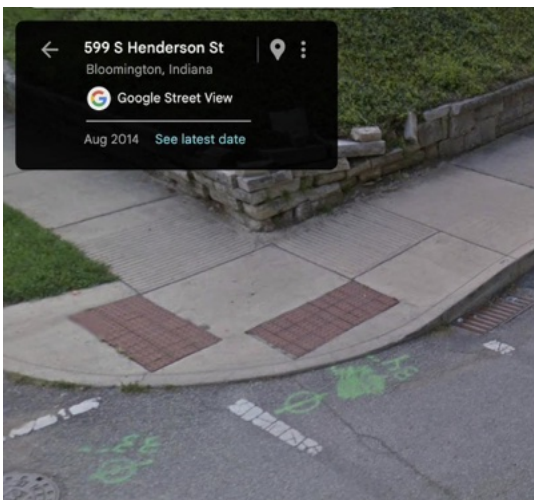


Fig. A-3 — Aug. 2014. Same location (Google Street View).

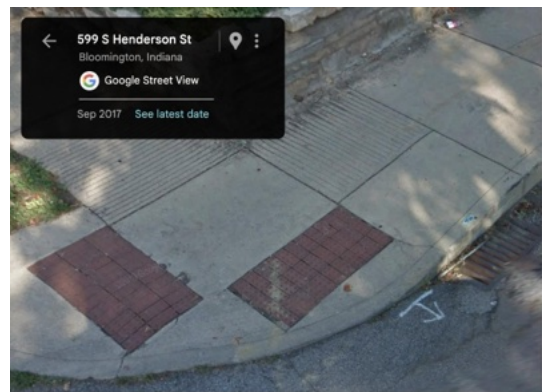


Fig. A-4 — Sep. 2017. Same location (Google Street View).

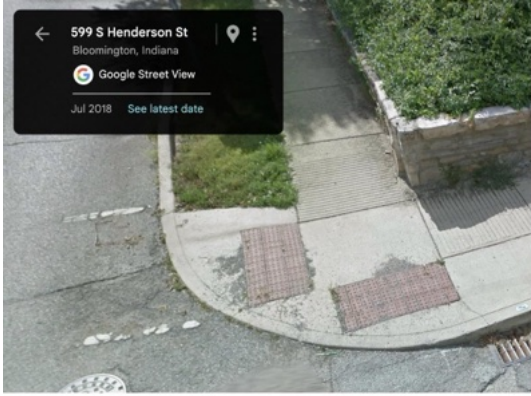


Fig. A-5 — Jul. 2018. Same location; prior ramp structure before the 2023 Greenway reconstruction (Google Street View).

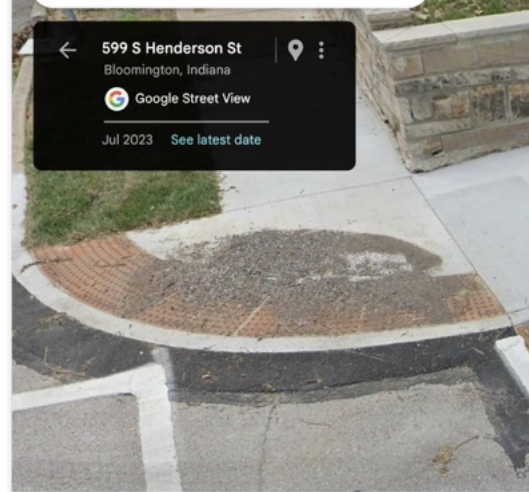


Fig. A-6 — Jul. 2023. Reconstructed ramp near project completion date (July 12, 2023). Gravel visible in ramp bowl (Google Street View).



Fig. A-7 — July 3, 2023. Complainant's photograph, nine days before project completion. Gravel accumulating in ramp bowl; what appears to be a construction barrel visible at right.



Fig. A-8 — October 20, 2023. Complainant's photograph, three months after project completion.



Fig. A-9 — June 3, 2024. Complainant's photograph, eleven months after project completion.

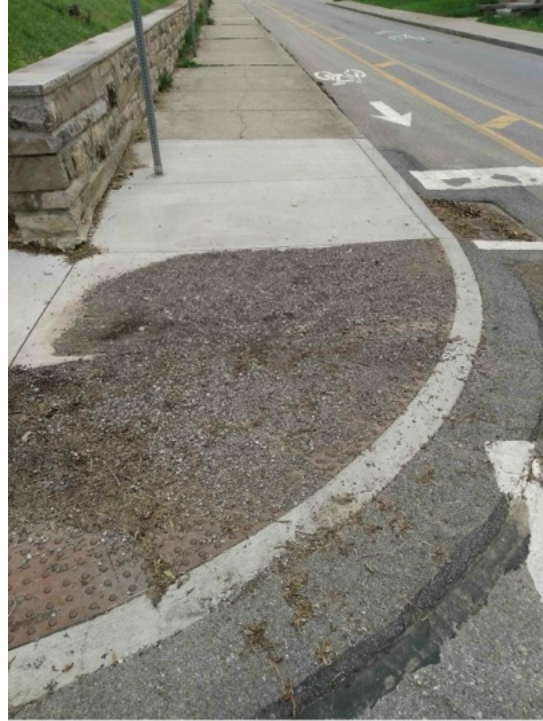


Fig. A-10 — May 31, 2025. Complainant's photograph, nearly two years after project completion.



Fig. A-11 — March 27, 2026. Complainant's photograph, nearly three years after project



Fig. A-12 — Apr. 2026. East side of S. Henderson St., looking north toward E. Second St. Cracked and deteriorated sidewalk surface; driveway crossing with gravel intrusion visible. This sidewalk was not addressed by the Henderson Greenway project.

*completion. Condition materially unchanged from
2023.*